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IN THE SUPREME COURT OF THE UNITED STATES

October Term, 1993

**MICHAEL J. CAVANAUGH, EXECUTIVE DIRECTOR OF
THE SOUTH CAROLINA DEPARTMENT OF
PROBATION, PAROLE AND PARDON SERVICES; AND
SOUTH CAROLINA DEPARTMENT OF PROBATION,
PAROLE AND PARDON SERVICES,**

PETITIONERS,

versus

GARY LEE ROLLER,

RESPONDENT.

On Writ of Certiorari to the United States
Court of Appeals for the Fourth Circuit

RESPONDENT'S BRIEF ON THE MERITS

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QUESTIONS PRESENTED FOR REVIEW

I. May a state prisoner challenging the denial of timely parole hearings seek injunctive relief under 42 U.S.C. §1983, or must relief be sought under 28 U.S.C. §2254?

II. Does the retrospective application of a statute increasing from one to two years the time period for parole consideration violate the *Ex Post Facto* Clause of the United States Constitution?

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STATEMENT OF THE CASE

The Respondent/Plaintiff, Gary Lee Roller, (hereinafter Roller), was convicted in Chester County, South Carolina, Court of General Sessions, of the crimes of Voluntary Manslaughter and Grand Larceny, said crimes occurring on December 13, 1982. Roller was sentenced on March 25, 1983, to thirty (30) years for the crime of Voluntary Manslaughter and five (5) years for the crime of Grand Larceny. The law in effect at the time of his crimes and sentencing required annual reconsideration of parole if Roller was denied parole on his original eligibility date. (J.A. 6). In 1986, the State amended the parole statute to provide that violent offenders would be reconsidered for parole every two years after initial rejection. (J.A. 7). Roller was initially considered and rejected for parole on October 27, 1990. The letter of rejection stated that he would be eligible for reconsideration on or about October 27, 1992, in accordance with the state law passed in 1986.

Prior to the administrative determination by the Petitioners as to Roller's reconsideration date, the South Carolina Supreme Court decided in *Gunter v. State*, 298 S.C. 113, 378 S.E.2d 443 (1989), that the retrospective application of the change in the parole law was not in violation of the *Ex Post Facto* Clause.

On December 28, 1990, Roller filed a Complaint under 42 U.S.C. §1983 in the District Court for the District of South Carolina seeking injunctive and monetary relief. (J.A. 2-11). The Honorable Henry M. Herlong, Jr., United States District Judge, issued an Order, filed November 8, 1991, granting the State's Motion for Summary Judgment. (J.A. 23-26). Roller appealed the District Court's ruling with regard to the denial of prospective injunctive relief. The Fourth Circuit Court of Appeals reversed the District Court and granted Roller the injunctive relief requested in its opinion of January 15, 1993. (J.A. 28-36). Thereafter, the State of South Carolina petitioned this Court for certiorari as the Fourth

Circuit ruling conflicted with the South Carolina Supreme Court's ruling in *Gunter v. State*. Certiorari was granted in this Court's Order of May 24, 1993.

Since this Court granted certiorari, the South Carolina Supreme Court has overruled its decision in *Gunter v. State*. In *Griffin v. State*, Opin. No. 23909 (July 19, 1993), the South Carolina Court held the change in parole reconsideration hearings under the Omnibus Crime Act of 1986, when applied to inmates such as Roller and Griffin, is violative of the *Ex Post Facto* Clause of the Constitution. In *Griffin*, the South Carolina Court adopted the reasoning of the Fourth Circuit's opinion in *Roller*.

SUMMARY OF THE ARGUMENT

The first issue raised is jurisdictional in nature and calls for this Court to determine whether a prisoner may challenge the denial of timely parole hearings under 42 U.S.C. §1983. As a hearing seeking parole neither assures Roller of release, nor involves any change in the length of his sentence, §1983 is a proper avenue for relief. The exclusive remedy provisions of *Preiser v. Rodriguez*, 411 U.S. 475 (1973), apply only to cases in which immediate release or reduction in length of confinement is sought. If the remedy sought relates to process rather than outcome, then the provisions of 28 U.S.C. §2254 do not preempt jurisdiction under §1983. As a ruling in Roller's favor on the underlying action will not entitle him to release, §1983 is a proper procedural alternative to vindicate his constitutional rights.

The second issue requires interpretation of the *Ex Post Facto* Clause of the Constitution. Roller was sentenced at a time when the statutory law of South Carolina

provided that upon initial rejection for parole he would be considered for parole every twelve months thereafter. In 1986, the parole law was changed to provide that the reconsideration hearings were to be held every twenty-four months rather than every twelve months. The State chose to apply the new statute to inmates sentenced prior to 1986. Under the guidelines of *Calder v. Bull*, 3 Dall. 386 (1798), and *Collins v. Youngblood*, 497 U.S. 37 (1990), the application of the subsequent statute to Roller violates *Calder* in that it "*changes the punishment, and inflicts a greater punishment*, than the law annexed to the crime, when committed." *Calder* at 390, [emphasis in original]. The State's categorization of the change as "procedural" is not relevant to the determination as the retrospective application of the statute goes to substantive aspects of the sentence imposed upon Roller, and "penal provisions accorded by the grace of the legislature" are equally entitled to the protection of the *Ex Post Facto* Clause as the actual sentence imposed. *Weaver v. Graham*, 450 U.S. 24, 30

(1981). Even though Roller may never be accorded the grace of parole during his term of imprisonment, the retrospective application of the statute restricting his opportunity to seek parole is more harsh than the law at the time of his sentencing and therefore "makes more burdensome" the punishment for his crime.

I.

AS THE RESPONDENT IS NOT ATTACKING THE FACT OR LENGTH OF HIS CONFINEMENT, NOR SEEKING AN IMMEDIATE OR MORE SPEEDY RELEASE, 42 U.S.C. §1983 IS AN APPROPRIATE REMEDY TO SEEK INJUNCTIVE RELIEF.

If Roller were seeking his release from custody, or a reduction in his sentence in order to gain an earlier release, his only avenue to obtain such relief would lie in habeas corpus. In the case at hand, Roller seeks injunctive relief for the sole purpose of obtaining an annual parole reconsideration hearing. Such a hearing would only give Roller the opportunity to seek parole which, in no way, is a guarantee of release. "That the state holds out the *possibility* of parole provides no more than a mere hope that the benefit will be obtained." *Greenholtz v. Inmates of Nebraska Penal & Corr. Complex*, 442 U.S. 1, 11 (1979) (citing *Board of*

Regents v. Roth, 408 U.S. 564, 577 (1982)) [emphasis in original]. This "mere hope" of release is the determinant factor in deciding whether Roller may proceed under §1983 or is limited to habeas corpus relief.

Under *Preiser v. Rodriguez*, 411 U.S. 475 (1973), the fact or duration of incarceration may not be challenged under 42 U.S.C. §1983. Roller does not challenge this general principle. The State, however, extends this qualification far beyond *Preiser* and its progeny. *Preiser* established the "extent to which §1983 is a permissible alternative to the traditional remedy of habeas corpus." 411 U.S. at 500. When the relief sought is actual or speedier release, *Preiser* restricts the availability of the civil rights statute. "In short, Congress has determined that habeas corpus is the appropriate remedy for state prisoners attacking the validity of the fact or length of their confinement, and that specific determination must override the general terms of §1983." 411 U.S. at 490. Similarly, the question here is

whether the general language of §1983 is preempted by the specific provisions of 28 U.S.C. §2254.

The language of 28 U.S.C. §2254(a) provides in part:

The Supreme Court, a justice thereof, a circuit judge, or a district court shall entertain an application for a writ of habeas corpus... only on the ground that he is in custody in violation of the Constitution or laws or treaties of the United States.

This language does not indicate that Congress intended this remedy to apply to constitutional complaints other than improper custody. As such, it does not preempt the general language of §1983 allowing a prisoner, challenging prison conditions and asserting denial of other constitutional rights, to proceed under §1983. *Preiser* at 498-499. The *Preiser* Court limited its holding to those cases in which plaintiffs did not seek damages, but only equitable relief which would result in their actual or speedier release.

This Court's rulings since have adhered to the *Preiser* parameters. *Wolff v. McDonnell*, 48 U.S. 539 (1974),

recognized that §1983 was a proper vehicle to challenge the procedures used in taking good time credits, although restoration of good time credits under §1983 was foreclosed by this Court's ruling in *Preiser*. This limitation, however, did not deprive the inmates of other relief under §1983.

[D]etermination of the validity of the procedures employed ... as a predicate to a damages award would not be barred by *Preiser*; and because under that case only an injunction restoring good time improperly taken is foreclosed, neither would it preclude a litigant with standing from obtaining by way of ancillary relief an otherwise proper injunction enjoining the prospective enforcement of invalid prison regulations.

Wolff, 418 U.S. at 555.

In *Gerstein v. Pugh*, 420 U.S. 103 (1975), pretrial detainees filed a §1983 class action suit challenging the Florida criminal procedure which allowed for pretrial detention without a judicial determination of probable cause. The suit sought injunctive relief and did not seek a release from custody.

Respondents did not ask for release from state

custody, even as an alternative remedy. They asked only that the state authorities be ordered to give them a probable cause determination.... Because release was neither asked nor ordered, the lawsuit did not come within the class of cases for which habeas corpus is the exclusive remedy. *Preiser v. Rodriguez*, see *Wolff v. McDonnell*.

Gerstein, 420 U.S. at 107 n.6 [citations omitted].

Greenholtz v. Inmates of the Nebraska Penal & Corr. Complex, 442 U.S. 1 (1979), dealt with a substantially similar issue as that raised by *Roller*; whether constitutional concerns were violated by post-sentencing parole procedures. This Court reached the merits of the *Greenholtz* §1983 claim without mention of whether the suit was properly before the Court. As pursuing the action under §1983 is a jurisdictional matter, this Court would have *sua sponte* raised the issue and refused to consider the merits of the underlying claim. *Collins v. Youngblood*, 497 at 41.

Under the State's reasoning, *Greenholtz* should have been dismissed. The basis of the inmates claim was that "they had been unconstitutionally denied parole...." 442 U.S.

at 3. As such, the *Greenholtz* plaintiffs, had they been successful, may have had an increased opportunity for release on parole. The fault in Petitioner's argument is that the State fails to distinguish between claims focusing on procedure and those focusing on the outcome of litigation. *Gerstein v. Pugh's* holding that pretrial detainees were entitled to fair and impartial probable cause determinations could have led to the release of some plaintiffs from pretrial detention. This fact did not limit the detainees to habeas corpus relief as the remedy sought was a fair hearing and not release. "[T]he fact that a prisoner's success in the litigation might increase the chance for early release does not, in itself, transform the action into one for habeas corpus." *Georgevich v. Strauss*, 772 F.2d 1078, 1087 (3rd Cir., *en banc* 1985) (citing *Wright v. Cuyler*, 624 F.2d 455 (3d Cir. 1980)).

The question is one of process as opposed to outcome. When an inmate is challenging the procedures applied as violative of the Constitution, and not seeking actual

release, §1983 is an appropriate vehicle. In *Georgevich*, the Circuit Court considered a constitutional challenge to parole procedures on equal protection grounds and found the process versus outcome distinction determinative of which claims are properly under §1983 and which are restricted to habeas corpus. After reviewing this Court's decisions in *Preiser*, *Wolff*, *Gerstein* and *Greenholtz*, the Third Circuit found "the distinction [to be] between process-based claims and those focusing on the outcome of a particular decision. Since plaintiff's claim relates only to process and not to the actual duration of confinement, we hold that it could properly be brought as a §1983 action." *Georgevich*, 772 F.2d at 1087. Roller agrees with the Third Circuit that "analysis of the relief sought is necessary to determine whether exhaustion of state remedies is required." *Georgevich v. Strauss*, 772 F.2d at 1086.

Roller does not challenge the legality, fact or duration of his confinement. What is challenged is the process

by which the State has denied Roller hearings to which he was formerly entitled. If Roller is successful in obtaining the injunctive relief requested, the ultimate effect of yearly hearings on his ability to obtain parole is unknown. Obtaining yearly as opposed to bi-yearly hearings does not in any way guarantee him a speedier release from prison. This Court's decision on the merits of this action will not divest the parole board of its sole authority to decide if Roller is to be released. Therefore, Roller is not asking this Court to provide him with a speedier release, but with an opportunity to be considered for release under the circumstances as they existed at the time of his crime and sentencing.

While Roller makes no assertion that he is entitled to parole now or at any time in the future, the Fourth Circuit Court's decision makes it clear that he should not expect such relief. "Our decision does not, of course, require or even suggest that Roller be paroled. South Carolina need never parole him, so long as it considers the question every

year." *Roller v. Cavanaugh*, 984 F.2d 120, 124 (4th Cir. 1993). Simply put, release for Roller is "neither asked nor ordered" under his §1983 action. *Gerstein*, 420 U.S. at 107 n. 7. The Fourth Circuit Court of Appeals correctly decided this issue and Roller's action is properly brought under §1983.

Petitioner also argues that Roller should have first sought redress in the South Carolina State Courts before asking for federal relief. While exhaustion of state remedies may be necessary for habeas purposes, the same is not true of §1983 actions. *Patsy v. Board of Regents*, 457 U.S. 496 (1982).

II.

THE RETROSPECTIVE APPLICATION OF A STATUTE INCREASING THE TIME PERIOD FOR CONSIDERATION FOR PAROLE FROM ONE TO TWO YEARS "INFLECTS A GREATER PUNISHMENT" FOR A CRIME AND VIOLATES THE *EX POST FACTO* CLAUSE OF THE CONSTITUTION.

The Fourth Circuit found that "South Carolina has undoubtedly applied its new statute to 'alter the conditions of...[Roller's] preexisting parole eligibility.'" *Roller v. Cavanaugh*, 984 F.2d at 124 (citing *Fender v. Thompson*, 883 F.2d 303, 306 (4th Cir. 1989)). Based upon the established general rule in the Fourth Circuit that changes in parole eligibility after the commission of the crime are in violation of the *Ex Post Facto* Clause, the Circuit Court found a violation of the Constitution in Roller's case. This decision conforms with the long standing rules of this Court as to the *ex post facto* prohibition and is consonant with the tradition of this

venerable precept.

In *Calder v. Bull*, 3 Dall. 386 (1798), Justice Chase engaged in a lengthy discussion of the differences between *ex post facto* and retrospective laws. 3 Dall. at 391-393. While indicating that both categories are "generally unjust; and may be oppressive," *Calder* at 391, he found that only penal laws fall "within the words and the intent of the prohibition." *Calder* at 390 [emphasis in original]. The term *ex post facto* was in use "long before the Revolution, and had acquired an appropriate meaning, by *Legislators, Lawyers, and Authors*." *Calder* at 391 [emphasis in original]. Justice Chase found this meaning to encompass four categories:

1st. Every law that makes an action done before the passing of the law, and which was *innocent* when done, criminal; and punishes such action. 2d. Every law that *aggravates* a crime, or makes it *greater* than it was, when committed. 3d. Every law that *changes the punishment*, and inflicts a *greater punishment*, than the law annexed to the crime, when committed. 4th. Every law that alters the *legal rules of evidence*, and receives less, or different, testimony, than the law required at the time of the commission of the offence, *in order*

to convict the offender.

Calder at 390 [emphasis in original].

These precepts were found to be consistent with commentaries of Sir William Blackstone who "considers an *ex post facto* law precisely in the *same* light I have done." *Calder* at 391 [emphasis in original]. While the accuracy of the historical discussion in *Calder* has been debated, this Court has faithfully adhered to the general principles espoused by the Justices in that case. See, *Collins v. Youngblood*, 497 U.S. 37, 41 n. 2 (1990).

This Court has, on a number of occasions, revisited the meaning of the *ex post facto* provisions. Of these cases, this Court has found that *Beazell v. Ohio*, 269 U.S. 167 (1925), "is faithful to our best knowledge of the original understanding of the *Ex Post Facto* Clause." *Collins v. Youngblood*, 497 U.S. 37, 43 (1990). In the 127 years between *Calder* and *Beazell*, this Court, on a number of occasions, found retrospective penal laws did not violate the *ex*

post facto doctrine. In *Beazell*, Justice Stone reviewed these opinions and found that there was substantial precedent for the principle but there was no bright line test to determine when a procedural change violated the Constitution.

But it is now well settled that statutory changes in the mode of trial or the rules of evidence, which do not deprive the accused of a defense and which operate only in a limited and unsubstantial manner to his disadvantage, are not prohibited.... Just what alterations of procedure will be held to be of sufficient moment to transgress the constitutional prohibition cannot be embraced within a formula or stated in a general proposition. The distinction is one of degree. But the constitutional provision was intended to secure substantial personal rights against arbitrary and oppressive legislation, and not to limit the legislative control of remedies and modes of procedure which do not affect substantial rights.

269 U.S. at 170-171 [citations omitted].

Examples given of retrospective changes which do not violate the prohibition are the qualification of convicted felons as witnesses, *Hopt v. Utah*, 110 U.S. 575 (1884); allowing evidence which had been previously held inadmissible, *Thompson v. Missouri*, 171 U.S. 380 (1898);

changing the place of trial, *Gut v. Minnesota*, 9 Wall. 35, 19 L.Ed. 573 (1870); and changing the mode of execution, *Malloy v. South Carolina*, 237 U.S. 180 (1915).

The degree of the distinction is illustrated by comparing the ruling in *Malloy* with *Ex Parte Medley*, 134 U.S. 160 (1890). In both cases the defendant was under a valid sentence of death. In *Medley*, the retrospective statutory change added a requirement of solitary confinement prior to execution, in *Malloy* the method of execution was changed from hanging to death by electrocution. As this Court found that solitary confinement was "an additional punishment of the most important and painful character," *Medley*, 134 U.S. at 171, his punishment was found to be in violation of the Constitutional protection. On the other hand, in *Malloy*, the Court found that the change from hanging to electrocution was, if anything, a more humane method of producing death and "some of the odious features incident to the old method [hanging] were abated." *Malloy*, 237 U.S. at 185. Therefore,

the statutory change in *Malloy* did not violate the prohibition. The distinction between the cases turns upon the issue of whether the new statute makes more harsh the *punishment* being imposed. If it does, then it violates the *Ex Post Facto* Clause; if it does not then there is no violation.

This Court revisited the "procedural" question in *Collins v. Youngblood*, *supra*.

Several of our cases have described as "procedural" those changes which, even though they work to the disadvantage of the accused, do not violate the *Ex Post Facto* Clause. While these cases do not explicitly define what they mean by the word "procedural," it is logical to think that the term refers to changes in the procedures by which a criminal case is adjudicated, as opposed to changes in the substantive law of crimes.

497 U.S. at 45 [citations omitted].

This Court found an element of confusion had been fostered by a number of cases which accorded protection to procedural changes which affected "matters of substance" or "arbitrarily infring[ed] upon 'substantial personal rights.'" *Id.* By returning to the original concept of *Calder*, the Court indicated

that *ex post facto* violations should be founded upon the categories set forth by Justice Chase. By whatever designation given a retrospective penal change, if it involves one of the four *Calder* categories, and is detrimental to the defendant, it violates the *Ex Post Facto* Clause.

We think the best way to make sense out of this discussion in the cases is to say that by simply labelling a law "procedural," a legislature does not thereby immunize it from scrutiny under the *Ex Post Facto* Clause. Subtle *ex post facto* violations are no more permissible than overt ones....But the prohibition which may not be evaded is the one defined by the *Calder* categories.

Collins, 110 S.Ct at 2721 [citations omitted].

The question becomes whether an increase from one to two years in parole consideration after initial rejection is encompassed in the *Calder* categories. The Petitioner ignores this aspect of *Collins* and focuses an argument to whether the change is "substantial." While Roller maintains that the change in his case is substantial, the Respondent believes the proper inquiry lies in the nature of the deprivation.

The Petitioner focuses on the "substantial protections" and "personal rights" issues in arguing that Roller is not protected by the constitutional prohibition. Such inquiry is inconsistent with the effort of the Court in *Collins* to clear up the confusion engendered by these phrases and refocus the analysis to the *Calder* categories. *Collins*, 497 U.S. at 45-46.

While Roller's total sentence has not been changed, his opportunity to seek his release, pursuant to a procedure mandated by the law at the time of his sentence, has been altered. While a State has no obligation to employ parole, good time, or work credits, once these benefits are granted by legislation, they are entitled to *ex post facto* protection. "Thus, even if a statute merely alters penal provisions accorded by the grace of the legislature, it violates the Clause if it is both retrospective and more onerous than the law in effect on the date of the offence." *Weaver v. Graham*, 450 U.S. 24, 30-31 (1981).

The Petitioner argues that there has been no

change in the sentence imposed upon Roller. While Roller's thirty-five year sentence has not been changed, this fact does not end the inquiry. In *Weaver*, this Court found that the retrospective change in gain time credits to the inmate's detriment, while outside of the sentence imposed, was a change in "the quantum of punishment." 450 U.S. at 33 (quoting *Dobbert v. Florida*, 432 U.S. at 293-294). Similarly Roller has suffered a change in his punishment, and the retrospective application of the statute at issue here falls squarely under the *Calder* categories.

In *Weaver*, the issue as to the effect of the retrospective change was a close one. The gain time statute was amended to reduce the amount of gain time for good behavior but increased the opportunity for discretionary gain time. Then Justice Rehnquist, concurring in the judgment, indicated that he was "persuaded in this case, albeit not without doubt, that the statute is more onerous than the old." 450 U.S. at 38. The significance of the resolution of this issue in the

inmate's favor is that the Petitioner's argument as to "substantial deprivation" misses the point. If there is no dispute as to the detrimental effect of the statute, then the inquiry ends.

Roller's entitlement to annual parole hearings after reaching his parole eligibility date was statutory law in South Carolina at the time of his crime and sentencing. As such, it was a "part of the law annexed to the crime at the time" of his offense. *Roller v. Cavanaugh*, 984 F.2d at 122 (quoting from *Schwartz v. Muncy*, 834 F.2d 396, 398 n. 8 (4th Cir. 1987)). Changing the law to require Roller to serve at least one additional year before parole reconsideration is a change in the quantum of punishment. "We are not willing to disparage the 'substance' of a year, especially a year in prison." *Roller* at 123. This change, while couched by the State as "procedural," does not affect some procedure concerning Roller's trial nor can it be said that it simply changes the manner in which the State is imposing the

punishment.

The fact that there is no guarantee that yearly reviews would make any difference in Roller's ultimate release date does not diminish the constitutional error of the State's action. In the case of *Lindsey v. Washington*, 301 U.S. 397 (1937), the petitioner committed a burglary at a time when there was a minimum sentence of six months and a maximum sentence of fifteen years. At the time of sentencing the law had changed to provide for a mandatory fifteen year sentence. This Court found the application of the mandatory sentence to Lindsey to be violative of *ex post facto*. Although Lindsey could have been sentenced to fifteen years under the original statute, such a sentence was not mandated.

It is true that petitioners might have been sentenced to fifteen years under the old statute. But the *ex post facto* clause looks to the standard of punishment prescribed by a statute, rather than to the sentence actually imposed. The Constitution forbids the application of any new punitive measure to a crime already consummated, to the detriment or material disadvantage of the wrongdoer...

We need not inquire whether this is technically an increase in the punishment annexed to the crime. It is plainly to the substantial disadvantage of the petitioners to be deprived of all opportunity to receive a sentence which would give them freedom from custody and control prior to the expiration of the fifteen-year sentence.

Lindsey v. Washington, 301 U.S. at 401-402.

While Roller may never be paroled, the proper test is whether his *opportunity* to seek release is being adversely affected. Without question Roller is being denied *all opportunity* to seek his release for the one year period after the anniversary of his parole eligibility.

Petitioner argues that there is a distinction between initial parole eligibility and subsequent hearing dates. That somehow once eligibility is reached, changing the dates for consideration for release does not disadvantage Roller. The Fourth Circuit rejected this argument finding that "[e]ligibility without consideration is cold comfort." *Roller*, 984 F.2d at 123. Although the two may be technically different, Petitioner's argument calls to mind the *Collins*' admonition that

"[s]ubtle *ex post facto* violations are no more permissible than overt ones." 497 U.S. at 46. This position also assumes that the opportunity to secure release is not a matter of substance. As a practical matter, no typical inmate could reasonably be expected to distinguish between the initial eligibility and subsequent consideration for parole. In each situation a hearing is the only means by which the inmate may obtain release. The Fourth Circuit Court of Appeals correctly held that the distinction was irrelevant for the purposes of the *ex post facto* clause.

To argue that the disadvantage to Roller imposed by South Carolina's Omnibus Crime Bill is insubstantial and therefore constitutional flies in the face of the purpose and spirit of the *ex post facto* clause. A retrospective increase in the burden of punishment is constitutionally prohibited.

The retrospective application of the 1986 parole provisions to Roller is in violation of the *Ex Post Facto* Clause of the Constitution. The change is penal in nature, is being

applied retrospectively, is contained within the *Calder* categories, and is to the detriment of the Respondent. While the states should be encouraged to fashion and implement changes in rehabilitative programs to foster improved correctional practices, such changes should not be at the expense of time honored constitutional principles. There is room in our society for both.

CONCLUSION

FOR THE FOREGOING REASONS, the Respondent, Gary Lee Roller, prays that this Honorable Court affirm the judgment of the Fourth Circuit Court of Appeals.

RESPECTFULLY SUBMITTED, this the 9th day of August, 1993, in Columbia, South Carolina.

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